



CHAPTER 32.

An Act to provide for the establishment of a Board for the development of supplies of electricity in the North of Scotland; to authorise the Board to generate and supply electricity and for purposes connected with the matters aforesaid. [5th August 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Establishment and Powers of North of Scotland Hydro-Electric Board.

1.—(1) For the purposes of this Act there shall be established a public authority to be called the North of Scotland Hydro-Electric Board (in this Act referred to as "the Board") consisting of persons appointed in accordance with the First Schedule to this Act.

Establishment
of North of
Scotland
Hydro-Electric
Board.

(2) The provisions of the First Schedule to this Act shall have effect with respect to the constitution and proceedings of the Board.

2.—(1) Subject to the provisions of this Act, the Board shall be responsible for initiating and undertaking the development of all further means of generation of electricity by water power within the area defined in the Second Schedule to this Act (hereinafter referred to as "the North of Scotland District") and it shall be the duty of the Board so far as practicable—

General
powers and
duties of
the Board.

(a) to provide supplies of electricity required to meet the demands of ordinary consumers in such parts of the North of Scotland District (including isolated areas) as are outside the areas of supply of other authorised undertakers;

- (b) to provide supplies of electricity required to meet the demands of authorised undertakers operating within the said District :

Provided that the Board shall not supply electricity directly to authorised undertakers within the area of supply of a power company, unless the power company consent or the Electricity Commissioners are satisfied that the Board can give a supply suitable to the needs of the authorised undertakers appreciably more economically than the power company ;

- (c) to provide supplies of electricity suitable for the needs of large power users in the said District :

Provided that the Board shall not supply electricity directly to any large power user within the area of supply of other authorised undertakers, unless those authorised undertakers consent or the Electricity Commissioners are satisfied that the Board can give a supply suitable to the needs of the large power user appreciably more economically than the authorised undertakers ; and

- (d) to supply electricity to the Central Electricity Board.

(2). It shall be the duty of the Board subject to the provisions of subsection (1) of section sixteen of this Act to give priority to the demands of the consumers and authorised undertakers mentioned in paragraphs (a) and (b) of the last foregoing subsection over all other demands for the electricity generated by them.

(3) The Board shall, so far as their powers and duties permit, collaborate in the carrying out of any measures for the economic development and social improvement of the North of Scotland District or any part thereof.

Powers of
Board for
discharge of
their
functions.

3. The Board may—

- (a) make such surveys and collect such information as they may consider necessary to ascertain the water power resources in the North of Scotland District or in any part thereof and for that purpose the Board or any person authorised by them may, after giving not less than seven days' notice and subject to payment of reasonable compensation for any damage caused thereby, enter upon any land and there do such things as may be necessary for the purposes aforesaid ;
- (b) collect for the purpose of their powers and duties information as to the requirements of the said District or any part thereof in respect of electricity ;
- (c) subject to the provisions of this Act, acquire such land, abstract, divert and use such water, divert such roads, and construct, operate and maintain such works and

plant, as may be necessary for the purpose of carrying out any scheme under section five or section six of this Act, and do any other thing necessary for the effective exercise and discharge of their powers and duties under this Act.

4.—(1) It shall be the duty of the Board as soon as may be after their appointment to prepare a general scheme for the exercise of their powers and duties (hereinafter referred to as the “development scheme”) showing, so far as practicable, the water power resources which the Board propose to examine with a view to their possible use for the purpose of generating electricity.

(2) The development scheme shall be submitted to the Electricity Commissioners for their approval, and if the scheme is so approved, the Board shall submit it to the Secretary of State for confirmation.

(3) If the scheme is not confirmed by the Secretary of State, it shall be the duty of the Board to prepare a fresh scheme in accordance with the foregoing provisions of this section.

(4) As soon as may be after the confirmation of the development scheme, the Board shall deposit a copy of the scheme, and keep it available for inspection, at the offices of the Board and at one or more convenient places within the locality to which the scheme relates, and shall publish in such form, and in such newspapers as the Secretary of State may require, a notice stating that the scheme has been so confirmed, and the offices and places at which copies of the scheme are so deposited for inspection.

5.—(1) With a view to—

Constructional
schemes.

- (a) the execution of works necessary for the generation of electricity from any of the water power resources specified in the development scheme, or of other works in any part of the North of Scotland District for the generation or transmission of electricity; or
- (b) the construction of main transmission lines outside the said District required for the supply of electricity to the Central Electricity Board; or
- (c) the provision for the officers and servants of the Board and for persons engaged in or in connection with the construction, maintenance or management of any works authorised by this Act of housing accommodation and any other buildings serving a beneficial purpose in relation to the requirements of such officers and servants or persons,

the Board shall from time to time prepare schemes (hereinafter referred to as “constructional schemes”) for any or all of those purposes.

(2) A constructional scheme shall contain particulars with regard to such matters, and shall be accompanied by such maps, drawings and plans as the Secretary of State may require.

(3) When the Board have prepared a constructional scheme, they shall submit it to the Electricity Commissioners for their approval, and if the scheme is so approved, the Board shall submit it to the Secretary of State for confirmation and shall publish in such form and in such newspapers as the Secretary of State may require a notice stating that the scheme has been prepared and has been so approved and submitted for confirmation and specifying the situation of any works proposed to be undertaken and of any land proposed to be acquired. The Board shall send copies of the said notice to the persons appearing from the valuation roll to be the owners and the occupiers of any land proposed to be acquired and shall also deposit a copy of the scheme and keep copies available for inspection and sale at the offices of the Board and at one or more convenient places, and the notice published as aforesaid shall state where the copies of the scheme are so deposited and shall also specify a period of forty days within which and the manner in which objection thereto may be made to the Secretary of State.

(4) If on the expiry of the time within which objection may be made to a constructional scheme the Secretary of State, on considering the scheme together with any objections made thereto and after holding such inquiry (if any) as he thinks fit, is of the opinion that it is in the public interest that the Board should be authorised to carry out the scheme, he may make an order confirming the scheme without amendment or with such amendments as the Board with the approval of the Electricity Commissioners may submit :

Provided that, where any person who has lodged objection to the scheme requests that an inquiry shall be held, the Secretary of State shall, unless he is of opinion that the objection is frivolous, cause an inquiry to be held before confirming the scheme.

(5) Every order made by the Secretary of State confirming a constructional scheme shall be laid before Parliament as soon as may be after it is made together with a copy of the scheme as confirmed, and if either House of Parliament within the next forty days after such an order as aforesaid is laid before it resolves that the order be annulled, the order shall thereupon be of no effect without prejudice, however, to the making of a new order.

In reckoning the said forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(6) A constructional scheme shall become operative on the expiry of the period within which the order confirming the scheme might be annulled without its being so annulled ; and the Board shall thereupon deposit copies of the scheme as confirmed and give notice of the places where such copies are available for inspection and sale in like manner as they are required by subsection (3) of this section to deposit copies and give notice thereof.

(7) As soon as may be after notice has been given in accordance with the provisions of the last foregoing subsection, the Board shall proceed with the construction of the works specified in the scheme and may do all things necessary for the due carrying into effect of the scheme :

Provided that the Board shall not provide supplies of electricity from the said works unless and until a scheme shall have been made and adopted under section four of the Electricity (Supply) Act, 1926, as adapted and modified by this Act covering the North of Scotland District.

6.—(1) The Board may from time to time prepare schemes Distribution schemes.
(hereinafter referred to as " distribution schemes ") for the supply of electricity to ordinary consumers within any part of the North of Scotland District outside the areas of supply of other authorised undertakers.

(2) A distribution scheme shall contain particulars with regard to such matters, and shall be accompanied by such maps, drawings and plans, as the Secretary of State may require.

(3) When the Board have prepared a distribution scheme, they shall submit it to the Electricity Commissioners for their approval, and, if the scheme is so approved, the Board shall submit it to the Secretary of State for confirmation and shall publish in such form and in such newspapers as the Secretary of State may require a notice stating that the scheme has been prepared and has been so approved and submitted for confirmation and specifying the area to which the scheme relates. The Board shall also deposit a copy of the scheme and keep copies available for inspection and sale at the offices of the Board and at one or more convenient places within the area to which the scheme relates and the notice published as aforesaid shall state where the copies of the scheme are so deposited and shall also specify a period of forty days within which and the manner in which objection thereto may be made to the Secretary of State.

(4) If on the expiry of the time within which objections may be made to a distribution scheme the Secretary of State, on considering the scheme together with any objections made thereto and after holding such inquiry (if any) as he thinks fit, is of the opinion that it is in the public interest that the Board

should be authorised to carry out the scheme, he may make an order confirming the scheme without amendment or with such amendments as the Board with the approval of the Electricity Commissioners may submit :

Provided that, where any person who has lodged objection to the scheme requests that an inquiry shall be held, the Secretary of State shall, unless he is of opinion that the objection is frivolous, cause an inquiry to be held before confirming the scheme.

(5) As soon as may be after the confirmation of a distribution scheme, the Board shall deposit copies of the scheme as confirmed and give notice of the places where such copies are available for inspection and sale in like manner as they are required by subsection (3) of this section to deposit copies and give notice thereof and shall proceed to carry it into effect and may do all things necessary for the due carrying into effect thereof.

Amendment
and revocation
of schemes.

7. A scheme confirmed in pursuance of this Act may be amended or revoked by a subsequent scheme prepared approved and confirmed in the like manner and subject to the like conditions as the original scheme.

Acquisition
of land.

8 & 9 Vict.
c. 33.

9 & 10 Geo. 5.
c. 57.

8.—(1) For the purposes of the acquisition of land which the Board are authorised by a scheme to acquire, there shall be incorporated with this Act the Lands Clauses Acts and section six and sections seventy to seventy-eight of the Railway Clauses Consolidation (Scotland) Act, 1845, subject however to the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, to the adaptations and modifications set out in the Third Schedule to this Act, and to the other provisions of this section.

(2) The Board, if it appears to them necessary or expedient for the purpose of carrying out a scheme to enter upon and take possession of any land which they are authorised by the scheme to acquire, may, after giving not less than twenty-eight days notice by registered post to the persons appearing from the valuation roll to be the owners and the occupiers of that land, enter upon and take possession of that land and may give such directions as appear to them to be necessary or expedient in connection with the taking of possession of that land.

(3) A certified copy of any direction to give up possession of and remove from any land given under the last foregoing subsection shall be sufficient warrant for ejection against any occupier or any party in his right in the event of non-compliance with any such direction.

(4) Land of which the Board are in possession in pursuance of subsection (2) of this section may, notwithstanding any restriction imposed on the use thereof (whether by any Act or other

instrument or otherwise), be used subject to the provisions of the scheme by the Board in such manner as they think expedient for the purpose of carrying out the scheme.

(5) Where, in exercise of the powers conferred on them by subsection (2) of this section, the Board have taken possession of any land, they shall, as soon as may be, proceed with the acquisition of the land and shall, if they are unable to acquire the land by agreement, serve notice to treat.

9.—(1) In the exercise of their functions, the Board shall have regard to the desirability of preserving the beauty of the scenery and any object of architectural or historic interest and of avoiding as far as possible injury to fisheries and to the stock of fish in any waters. Amenity
Committee
and Fisheries
Committee.

(2) For the purpose of giving advice and assistance to the Secretary of State and to the Board, the Secretary of State shall appoint an Amenity Committee and a Fisheries Committee, each consisting of such number of persons as he may think proper, and the Board shall furnish to those Committees any maps, plans, drawings or information which the Committees may reasonably require and shall afford to those Committees reasonable facilities for inspection.

(3) The Board shall, before and during the preparation of a constructional scheme, and may at any other time, consult the Amenity Committee and the Fisheries Committee, and those Committees may, upon being so consulted, or at any other time, make recommendations to the Board, who shall transmit copies of every such recommendation to the Secretary of State and the Electricity Commissioners, together with an intimation whether or not they are prepared to accept it.

(4) If the Board are not prepared to accept any recommendation made to them under the last foregoing subsection, the Secretary of State after considering any representations made to him thereon may, if the recommendation relates to a scheme which has been submitted to him for confirmation but has not yet been confirmed, refuse to confirm the scheme and may, in the case of any other recommendation (not being a recommendation involving the execution by the Board of any works authorised by a confirmed scheme otherwise than in the manner set forth in that scheme), require the Board to give effect to it and the Board shall thereupon be bound to carry out the requirement.

(5) The Board shall not, without giving prior notice to the Amenity Committee of their intention so to do, use or permit to be used for the exhibition of advertisements any part of any land or building owned or leased by them.

(6) The Board shall defray expenses reasonably incurred by the Amenity Committee and the Fisheries Committee under this section up to such amounts as the Secretary of State may from time to time approve.

31 & 32 Vict.
c. 123.

(7) Nothing in the provisions of Schedule G to the Salmon Fisheries (Scotland) Act, 1868 shall apply to any dam, aqueduct, pipe or other work constructed under this Act.

Financial Provisions.

Charges of
Board and
general fund.

10.—(1) Subject to the provisions of this Act, the prices to be charged by the Board for electricity supplied by them shall be determined by them in accordance with regulations to be made by the Secretary of State after consultation with the Electricity Commissioners, so however that the proceeds of the sale of electricity together with the other revenues of the Board may, so far as can be estimated, equal over a term of years to be approved by the Electricity Commissioners the sums required for meeting any expenditure which the Board may properly charge to revenue.

(2) All sums received by the Board on revenue account from whatever source including any interest on money invested shall be credited to and form part of a fund to be called the "general fund".

Application
of money.

11.—(1) All money borrowed by the Board shall be applied to the purpose for which it is authorised to be borrowed up to the amount required for that purpose, and any excess over that amount and all other capital money received by the Board in respect of their undertaking (including money arising from the disposal of lands acquired by the Board for the purposes of any scheme) shall be applied towards the discharge of any loan or, with the approval of the Electricity Commissioners, to any other purpose to which capital may properly be applied.

(2) There shall be paid out of the general fund all the expenses of the Board including (but without prejudice to the generality of this provision) interest on money borrowed and the sums required to be set aside for the repayment thereof, payments to the reserve fund, the salaries, fees and allowances to members of the Board, the salaries, remuneration, allowances of, and payments made for the purpose of providing superannuation allowances and gratuities for, the deputy chairman and the secretary, officers and servants of the Board or their representatives and expenditure on the operation, maintenance and repair of the works, machinery and plant forming part of the undertaking of the Board.

(3) The Board may provide out of revenue a reserve fund by setting aside such sums as they think reasonable, and investing

such sums and the resulting income thereof in securities of His Majesty's Government in the United Kingdom or securities guaranteed as to principal and interest by the said Government (other than securities of the Board), but a reserve fund so provided, including a sum equivalent to the accumulated interest thereon, shall not at any time exceed one-tenth of the aggregate capital expenditure of the Board at that time. The reserve fund shall be applicable to meet any deficiency at any time existing in the income of the Board from their undertaking or to meet any extraordinary claim or demand at any time arising against the Board in respect of their undertaking, and, if the fund is at any time reduced, it may thereafter be again restored to the prescribed limit.

(4) The Board may make provision for the carrying forward of such working balance as they may consider reasonably necessary, and may with the approval of the Electricity Commissioners apply any surplus revenues in payment of expenses chargeable to capital.

12.—(1) For the purposes hereinafter mentioned, the Board may with the consent of the Electricity Commissioners and subject to regulations to be made by the Secretary of State with the approval of the Treasury, borrow money, in such manner and subject to such provisions as to the repayment thereof, and with such powers as to re-borrowing for the purpose of paying off a loan previously raised as may be prescribed by the regulations, and the regulations may empower the Board to borrow temporarily and may apply with or without modifications any enactments relating to borrowing by local authorities.

Power of
Board to
borrow.

(2) Such powers of borrowing as aforesaid may be exercised for all or any of the following purposes :—

- (a) the acquisition of such land and the acquisition or construction of such works as the Board are authorised by or under this Act to acquire or construct ;
- (b) the provision of working capital and, during the period prior to the commencement of trading operations by the Board, the payment of interest thereon ;
- (c) the payment of administrative and preliminary expenses and the payment of interest on money borrowed for that purpose during the period prior to the commencement of trading operations by the Board ;
- (d) providing temporarily for any current expenses properly chargeable to revenue ;
- (e) any other payment which the Board are authorised to make and which ought in the opinion of the Electricity Commissioners to be spread over a term of years (including the payment of interest on money borrowed for capital expenditure for such period as may be

determined by the Electricity Commissioners, with the approval of the Treasury, not exceeding the period during which the expenditure remains unremunerative).

Any money borrowed for the purposes mentioned in this subsection and the interest thereon shall be charged on the undertaking and all the revenues of the Board.

(3) It shall be lawful for any annual provision required to be made by the Board for the repayment of money borrowed for any of the purposes mentioned in subsection (2) of this section, to be suspended subject to such conditions and for such period not exceeding the period during which the expenditure remains unremunerative as the Electricity Commissioners, with the approval of the Treasury, may determine :

Provided that such suspension shall not be for a longer period than five years from the commencement of the financial year next after that in which such expenditure is incurred.

Power to
issue stock.

13.—(1) The Board may, for the purpose of raising money which they are authorised to borrow under this Act, create and issue stock.

(2) Any stock issued by the Board and the interest thereon shall be charged on the undertaking and all the revenues of the Board.

(3) Subject to the provisions of this Act, any stock created by the Board under the powers of this Act shall be issued, transferred, dealt with, and redeemed, according to regulations to be made by the Secretary of State with the approval of the Treasury and any such regulations may apply for the purpose of this section, with or without modifications, any provisions of the Local Authorities Loans (Scotland) Acts, 1891 to 1924, and of any Act relating to stock issued by any local authority.

Power to
Treasury to
guarantee
loans to Board.

14.—(1) Subject to the provisions of this section, the Treasury may guarantee in such manner and on such conditions as they think fit the payment of the interest and principal of any loan proposed to be raised by the Board, or of either the interest or the principal :

Provided that the aggregate amount of the loans, the principal or interest of which may be so guaranteed, shall not exceed thirty million pounds.

(2) Such sums as may from time to time be required by the Treasury for fulfilling any guarantees given under this section shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

(3) The repayment to the Treasury of any sums so issued out of the Consolidated Fund, together with interest thereon at such rate as the Treasury may fix, shall be a charge on the undertaking

and all the revenues of the Board next after the principal and interest of the guaranteed loan and any sinking fund payments for the repayment of the principal thereof, and in priority to any other charges not existing at the date on which the loan is raised.

(4) All sums paid from time to time in or towards the repayment of any sum issued out of the Consolidated Fund under this section shall be paid into the Exchequer.

(5) The Treasury shall, so long as any such guarantees are in force, lay before both Houses of Parliament in every year within one month after the thirty-first day of March a statement of the guarantees (if any) given during the year ended on that date, and an account of the total sums (if any) which during the year ended on that date have been either issued out of the Consolidated Fund under this section or paid in or towards repayment of any money so issued.

15.—(1) The Board shall cause proper books of account and other books in relation thereto to be kept, and shall prepare an annual statement of accounts in such form and containing such particulars as the Secretary of State may by regulations prescribe. Accounts and audit.

(2) The accounts of the Board and their officers shall be audited by an auditor appointed by the Secretary of State and the audit shall be conducted in accordance with such regulations as may be made by the Secretary of State.

(3) As soon as the accounts of the Board have been audited, the Board shall send copies thereof to the Secretary of State and to the Electricity Commissioners together with copies of any report of the auditor thereon, and shall publish the accounts in such manner as the Secretary of State may direct and shall place copies thereof on sale at a reasonable price.

Relations with the Central Electricity Board and other undertakers.

16.—(1) The Central Electricity Board shall be bound to purchase from the Board such amount of electricity as the Board may from time to time undertake to supply and for that purpose the following provisions shall apply :— Relations with Central Electricity Board.

(a) the Board shall, in respect of the period from the date of the commencement of supply to the thirty-first day of December in the next ensuing year, and in respect of each calendar year thereafter, notify, in the case of the said period, not less than three months before the commencement of supply, and in the case

of each calendar year thereafter not later than the thirtieth day of November in the preceding year,

(i) the maximum number of kilowatts which the Board undertake to make available at any time during that period or year; and

(ii) the number of units which they undertake to supply in each month of that period or year;

Provided that the said maximum number of kilowatts and the aggregate of the said number of units in respect of any one year shall not without the consent of the Central Electricity Board be reduced below the maximum number of kilowatts and the aggregate of the number of units in respect of the immediately preceding year unless notice of intention to make such reduction has been given three years prior to the commencement of the first mentioned year;

(b) (i) the price to be charged by the Board for electricity supplied under this subsection to the Central Electricity Board in any year shall, unless otherwise agreed, be a sum ascertained in accordance with the rules contained in the Fourth Schedule to this Act, being a sum equal to the cost of production in that year of a like supply of electricity at the steam generating station operated under the directions of the Central Electricity Board in virtue of section seven of the Electricity (Supply) Act, 1926, which in respect of its cost of production as ascertained and adjusted, in accordance with the said Schedule, by reference to the cost and calorific value of coal consumed at steam generating stations in the area of the Central Scotland Electricity Scheme, 1927, and the other matters referred to in the said Schedule is the most economical station so operated;

(ii) the price to be charged by the Board for the electricity supplied under this subsection in respect of the period between the commencement of the supply and the next following thirty-first day of December shall be ascertained in the same manner as and by applying the same fixed cost per kilowatt and the same running cost per unit as those applied in ascertaining the price to be charged under this sub-section in respect of the electricity supplied in the first year after the year in which the supply shall be commenced except that the fixed cost per kilowatt shall be deemed to have accrued from day to day;

(c) the electricity supplied under this subsection shall be delivered by the Board to the Central Electricity Board at such point or points on the main transmission lines of

the latter Board in the area of the Central Scotland Electricity Scheme, 1927, as, failing agreement, may be determined by the Electricity Commissioners and in such quantities and at such times as the Central Electricity Board may direct :

Provided that the Central Electricity Board shall not direct the supply of a smaller maximum number of kilowatts in the said period or in any year or of a smaller number of units in any month than the maximum number of kilowatts or of units notified by the Board under paragraph (a) of this subsection in respect of that period, year or month.

(2) The Central Electricity Board may purchase from the Board electricity in addition to the electricity supplied under the last foregoing subsection, at such price and on such terms and conditions as may be agreed by the Boards.

(3) The Board may purchase electricity from the Central Electricity Board, and for that purpose the Board shall be deemed to be authorised undertakers operating in the area of the Central Scotland Electricity Scheme, 1927.

(4) The Central Electricity Board and the Board may enter into and carry into effect agreements for the construction by either Board in accordance with a constructional scheme of such main transmission lines as are necessary for the delivery of electricity purchased under this section, and for that purpose the powers of each Board shall be exercisable in the area of the other.

(5) Any question between the Central Electricity Board and the Board under paragraph (b) of subsection (1) of this section shall be determined by the Electricity Commissioners or, if the Secretary of State considers that the question is more appropriate to an auditor, by an auditor appointed by him.

17.—(1) In any matter in relation to which the execution of the powers and duties of the Central Electricity Board and the Board respectively may be facilitated by consultation or joint action, those Boards shall, so far as possible, act in collaboration, and for that purpose they may enter into such agreements as they may think necessary and shall appoint a joint committee (in this Act referred to as the "Joint Technical Committee") consisting of such members or officers of the Central Electricity Board and the Board as may be agreed.

(2) The Central Electricity Board and the Board may delegate to the Joint Technical Committee such functions as they may agree in relation to any matter referred to in the last foregoing subsection.

(3) The expenses of the Joint Technical Committee shall be defrayed by the Board.

Acquisition of
undertakings
by agreement.

18.—(1) It shall be lawful for the Board and for any undertakers, with the approval of the Electricity Commissioners, to enter into an agreement for the transfer to the Board of the whole or any part of the undertaking belonging to such undertakers and situated in the North of Scotland District ; and on such transfer any such undertaking or part thereof shall be deemed to form part of the undertaking of the Board and to have been provided by them under the powers and for the purposes of this Act and the Board shall be deemed to be the undertakers and may exercise in relation to the undertaking or part thereof any of the powers of the undertakers, unless and until such powers are modified or revoked by a scheme prepared, approved and confirmed in like manner as a distribution scheme.

(2) Before entering into any negotiations with a view to an agreement for the transfer to the Board of any undertaking which any other undertakers are empowered by or under any Act to acquire, the Board shall notify those undertakers of their intention to enter into such negotiations and the Electricity Commissioners, before approving any such agreement, shall notify those undertakers that the agreement has been submitted for their approval and shall consider any representations which those undertakers may make.

Joint use of
main trans-
mission lines.

19. The Board and any authorised undertakers operating in the North of Scotland District may enter into agreements for the use of any main transmission line belonging to either of them by the other and where either of them are unable to secure on reasonable terms the use of any main transmission line belonging to the other, they may with the consent of the Electricity Commissioners use such transmission line on such terms and conditions as those Commissioners may determine :

Provided that the Electricity Commissioners, before giving consent to such use, shall be satisfied that such use will not interfere with the use of the transmission line which may from time to time require to be made by the owners thereof in order to meet their requirements.

Consumers to
benefit from
reduction in
charges.

20. Any authorised undertakers who receive a supply of electricity directly or indirectly from the Board shall furnish to the Electricity Commissioners such information as they may require from time to time to enable them to determine the amount by which the cost of such supply is less than the cost that would have been incurred by the undertakers in providing or obtaining a like supply had this Act not been passed, and a sum equal to such amount shall be applied by the undertakers for the benefit of their consumers by way of discount or otherwise as the Electricity Commissioners may direct.

Miscellaneous Provisions.

21.—(1) Subject to the provisions of this Act, the Board shall be deemed to be undertakers and authorised undertakers within the meaning of the Electricity (Supply) Acts, 1882 to 1936, and this Act and any scheme approved and confirmed thereunder shall in relation to the Board be deemed to be a special Act for the purposes of those Acts, and for the purposes of this section there shall be incorporated with this Act the provisions of the Schedule to the Electric Lighting (Clauses) Act, 1899.

Application of
Electricity
Supply Acts
to Board.

62 & 63 Vict.
c. 19.

(2) The provisions of the aforesaid Acts and Schedule as they apply to Scotland shall in relation to the North of Scotland District have effect subject to the adaptations and modifications set forth in the Fifth Schedule to this Act.

22. After the passing of this Act it shall not be lawful, except with the consent of the Electricity Commissioners, for any body or person to establish in the North of Scotland District a new private generating station operated by water power and having plant with a rating exceeding fifty kilowatts or to extend any existing private generating station so operated in the said District by the installation of plant with a rating exceeding fifty kilowatts:

Control of new
private
hydro-electric
generating
stations.

Provided that the Electricity Commissioners shall not refuse their consent to the establishment or extension of any such station if they are satisfied that such establishment or extension would not prejudice the exercise or performance by the Board of their powers or duties regarding the development of further means of generation of electricity by water power.

23.—(1) The Board shall annually at such date and in such form as the Secretary of State may require make to him a report dealing generally with the operations of the Board during the preceding year, and such report shall be laid before Parliament and shall be on sale at a reasonable charge to the public at the offices of the Board.

Annual
reports,
statistics and
returns.

(2) The Board shall furnish to the Secretary of State and the Electricity Commissioners such financial and statistical returns as they may at any time require.

24. The provisions of the Sixth Schedule to this Act shall apply to any inquiry held by the Secretary of State for the purposes of this Act.

Local

25. The Board may conduct experiments or trials for the improvement of methods of generation, distribution or use of electricity in the special conditions and circumstances in the North of Scotland District, and may incur such expenditure for the purpose as they may think fit.

Power to
conduct
experiments.

Saving for
existing powers
as to genera-
ting stations.

9 & 10 Geo. 5.
c. 100.

26. Where consent is given by the Electricity Commissioners under section twenty-two of this Act or under section eleven of the Electricity (Supply) Act, 1919, as amended by any subsequent enactment, to the establishment of a new, or the extension of an existing, generating station in the North of Scotland District by any body or person, nothing in this Act shall prevent the exercise of any powers otherwise competent to that body or person in relation to the construction or extension of the station and the carrying out of any other works necessary for the operation of the station.

Interpretation.

9 & 10 Geo. 5.
c. 100.

27. In this Act, unless the context otherwise requires—

the expression “ generating station ” has the meaning assigned to it by section thirty-six of the Electricity (Supply) Act, 1919 ;

the expression “ land ” includes an interest in land and references to entering upon or taking possession of land shall be construed accordingly, and any reference to land shall include a reference to salmon fishings ;

the expression “ large power user ” means a consumer (other than any authorised undertakers or the Central Electricity Board) with a demand for a supply of not less than five thousand kilowatts ;

the expression “ maximum number of kilowatts ” in relation to any electricity directed by the Central Electricity Board to be supplied by the Board, or to any electricity supplied by the Board, in any period, means twice the largest number of units of electricity directed to be supplied or supplied, as the case may be, during any consecutive thirty minutes either from the commencement or from the middle of any hour of the twenty-four hours of any day in that period ;

the expression “ ordinary consumer ” means any consumer other than any authorised undertakers, a large power user or the Central Electricity Board ;

other expressions have the like meanings as in the Electricity (Supply) Acts, 1882 to 1936, or the Electric Lighting (Clauses) Act, 1899.

Short title.

28. This Act may be cited as the Hydro-Electric Development (Scotland) Act, 1943.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

CONSTITUTION AND PROCEEDINGS OF THE NORTH OF SCOTLAND HYDRO-ELECTRIC BOARD.

1. The Board shall consist of a chairman, a deputy chairman and three other members. The chairman, the deputy chairman and two other members of the Board shall be appointed by the Ministers, and one member shall be a member of the Central Electricity Board appointed by that Board.

2. A person shall be disqualified for being appointed or being a member of the Board so long as he is a member of the Commons House of Parliament.

3. A person shall be disqualified for being appointed or being a member of the Board if he is an undischarged bankrupt or if he has granted a trust deed for behoof of creditors, or entered into a composition contract.

4. The deputy chairman of the Board, who shall be required to devote his whole time to the duties of his office, shall be the chief executive officer of the Board.

5. A member of the Board shall hold office for such term and on such conditions as the Ministers or the Central Electricity Board, as the case may be, may determine at the time of his appointment: Provided that—

(a) a member may resign his office by notice in writing given to the Secretary of State or the Central Electricity Board, as the case may be, and

(b) the member appointed by the Central Electricity Board shall cease to hold office on ceasing to be a member of that Board.

6. Any member of the Board shall, if he is interested in any company with which the Board has made or proposes to make any contract, disclose to the Board the fact and nature of his interest, and shall take no part in any deliberation or decision of the Board relating to such contract, and such disclosure shall be forthwith recorded in the minutes of the Board.

7. Where any member of the Board is absent from the meetings of the Board for more than six months consecutively, except for some reason approved by the Ministers, the Secretary of State shall forthwith declare his office to be vacant, and thereupon the office shall become vacant.

8. The Board shall be a body corporate and shall have power to regulate their own procedure:

Provided that the quorum of the Board shall not be less than three.

1ST SCH.
—cont.

9. The Board may act notwithstanding a vacancy in their number.

10. The Board shall have their offices in Scotland.

11. The Board shall have a common seal and the seal of the Board shall be authenticated by the signatures of the chairman of the Board or some other member of the Board authorised by the Board to act in his stead in that behalf, and of the secretary to the Board or some person authorised by the Board to act in his stead in that behalf.

12. Every document purporting to be an instrument issued by the Board and to be sealed with the seal of the Board authenticated in the manner provided by the last foregoing paragraph, or to be signed by the secretary to the Board or by a person authorised by the Board to act in his stead in that behalf, shall be received in evidence and be deemed to be such an instrument or document without further proof unless the contrary is shown.

13. The Board shall appoint a secretary and such other officers and servants as the Board may determine.

14. There shall be paid to the members of the Board such salaries or fees and allowances for expenses as the Ministers with the approval of the Treasury may determine and there shall be paid to the secretary, officers and servants of the Board or their representatives such salaries, remuneration and allowances and superannuation allowances and gratuities as the Board may determine.

15. The Board may adopt the provisions of Part I of the Local Government Superannuation (Scotland) Act, 1937, and, if they do so, that Act shall have effect in relation to the Board as if they were a local authority required to maintain a superannuation fund under Part I of that Act, and, in relation to any employee of the Board, as if the Board were a local authority within the meaning of that Act, not being either a local authority specified in Part I of the First Schedule thereto or a local Act authority within the meaning of that Act.

16. In this Schedule the expression "the Ministers" means the Secretary of State and the Minister of Fuel and Power acting jointly.

SECOND SCHEDULE.

Section 2.

NORTH OF SCOTLAND DISTRICT.

The County of the City of Aberdeen, the Counties of Aberdeen, Argyll, Banff, Bute, Caithness, Inverness, Kincardine, Moray, Nairn, Orkney, Ross and Cromarty, Sutherland and Zetland.

So much of the County of Angus as comprises :—

The Parishes of Cortachy and Clova, Fern, Glenisla, Kingoldrum, Lethnot, Lintrathen, Lochlee and Tannadice.

So much of the County of Dunbarton as comprises :—

The Parishes of Arrochar, Kilmaronock, Luss and Rosneath.

2ND SCH.
—cont.

So much of the County of Perth as comprises :—

The Parishes of Aberfoyle, Alyth, Balquhiddy, Bendochy, Blair-Atholl, Blairgowrie, Callander, Caputh, Clunie, Comrie, Dull, Dunkeld and Dowally, Fortingall, Fowls Wester, Kenmore, Killin, Kinloch, Kirkmichael, Lethendy, Little Dunkeld, Logie-almond, Logierait, Monzievaird and Strowan, Moulin, Port of Menteith, Rattray, Weem, and that portion of the parish of Auchtergaven which was transferred to that Parish from the Parish of Logiealmond by Order of the Secretary of State dated the twenty-second day of October, 1929, and which is comprised within the following boundary :—

Commencing at a point on the Shochie Burn due north of Hardhill, north-eastwards and eastwards following the boundary of the Parish of Moneydie, a distance of approximately three-quarters of a mile, to a point due north of Blackhill, thence northwards by Cowford Cottage for a distance of approximately half a mile, thence westwards for a distance of approximately three-quarters of a mile and northwards for a distance of approximately a quarter of a mile to a point on the Wharry Burn near Tullybelton House, thence following the line of the Wharry Burn and the Corrody Burn until the latter reaches the boundary of the Parish of Little Dunkeld, a distance of approximately four miles, thence following the boundary of the Parish of Little Dunkeld north-westwards and then southwards until it reaches the upper reaches of the Shochie Burn, a distance of approximately one and a quarter miles, and thence following the course of the Shochie Burn in an easterly direction to the point of commencement, a distance of approximately four and a quarter miles.

So much of the County of Stirling as comprises :—

The Parishes of Balfroun, Buchanan, Drymen, Fintry, Gargunnoch, Killearn and Kippen.

THIRD SCHEDULE.

ADAPTATIONS AND MODIFICATIONS OF LANDS CLAUSES ACTS AND Section 8 (1). OF THE RAILWAYS CLAUSES CONSOLIDATION (SCOTLAND) ACT, 1845.

1. The scheme shall be deemed to be the Special Act, and, in the Lands Clauses Acts, references to the promoters of the undertaking shall be construed as references to the Board, and, in the Railways Clauses Consolidation (Scotland) Act, 1845, references to the railway company shall be construed as references to the Board, and references to the railway shall be construed as references to the land acquired or to any works which have been or may be constructed thereon, or to any use to which the land is or may be put, according to the context.

3RD SCH.
—cont.

2. Sections eighty-three to eighty-eight and section ninety of the Lands Clauses Consolidation (Scotland) Act, 1845, and the provisions of that Act relating to access to the special Act shall not apply.

3. For the purpose of surveying and taking levels of any lands and of probing or boring to ascertain the nature of the soil and of setting out the line of any works, it shall be lawful for the Board or any person authorised by them, after giving not less than seven days' notice and subject to payment of reasonable compensation for any damage caused thereby, to enter upon such lands.

4. No person shall be required to sell a part only of any house, building or manufactory or of any land which forms part of a park or garden belonging to a house, if he is willing and able to sell the whole of the house, building, manufactory, park or garden unless the arbiter by whom compensation is to be assessed determines in the case of a house, building or manufactory that the part proposed to be taken can be taken without material detriment to the house, building or manufactory; or in the case of a park or garden, that such part can be taken without seriously affecting the amenity or convenience of the house; and if the arbiter so determines, compensation shall be awarded in respect of the severance of the part so proposed to be taken, in addition to the value of that part, and thereupon the person interested shall be required to sell to the Board that part of the house, building, manufactory, park or garden.

5.—(1) In assessing the sums to be included in the compensation payable to any person by way of compensation in respect of the injurious affection of, or the severance of the land acquired from, any land in which that person has an interest, account shall be taken of any increase, ascribable to any use to which the land acquired is intended to be put, in the value of his interest in any land which at the relevant time was held with the land acquired.

(2) In this paragraph the expression "the relevant time" means, in connection with the acquisition of any land, immediately before the date of the service of the notice to treat relating to the land, or, if possession of the land had then already been taken by the Board in exercise of the power conferred on them by subsection (2) of section eight of this Act, immediately before the taking of possession.

6. In assessing the compensation payable in respect of the acquisition of any land, no account shall be taken of any change in the value of the land attributable to any thing done by the Board in the exercise of their powers under subsection (4) of section eight of this Act, but the value of the land shall be computed by reference to the circumstances existing at the date of the notice given in pursuance of subsection (2) of the said section.

7. The compensation payable in respect of the acquisition of a servitude over any land shall be the difference between the value of that land free from that servitude and the value of that land subject to that servitude.

8. Any person empowered to sell or convey any land to the Board shall have power to grant to them a servitude over that land.

9.—(1) The Board may sell, feu, or lease for such periods and for such consideration as they may think fit any land and property for the time being belonging to them which they do not require for the purposes of any scheme.

(2) On so disposing of any land, the Board may reserve to themselves all or any part of the water rights or any servitude belonging thereto and may so dispose of any land subject to such other reservations, conditions, and restrictions as they may think fit.

FOURTH SCHEDULE.

RULES FOR ASCERTAINING THE PRICE PAYABLE BY THE CENTRAL Section 16 (1). ELECTRICITY BOARD TO THE BOARD FOR ELECTRICITY SUPPLIED IN ANY YEAR UNDER SECTION 16 (1).

1. There shall be ascertained in accordance with the Second Schedule to the Electricity (Supply) Act, 1926, the cost of production at each steam generating station operating in the year under the direction of the Central Electricity Board in virtue of section seven of that Act.

2. The cost of production at each of the said stations shall be adjusted by substituting for the sum expended for fuel consumed at the station the sum which would have been so expended had the cost per ton and the calorific value per pound of the fuel so consumed been the same as the average cost per ton and the average calorific value per pound of the fuel consumed in the year at all the steam generating stations operating under section seven of that Act in the area of the Central Scotland Electricity Scheme, 1927.

3. The cost of production adjusted in accordance with the last foregoing paragraph at each of the said stations shall be allocated as between fixed costs and running costs in accordance with the Electricity (Allocation of cost of Production) Regulations, 1929.

4.—(a) The fixed costs at each station so ascertained shall be divided by ten twelfths of the aggregate continuous maximum rating in kilowatts of the generating plant installed at the station at the beginning of the year and the resultant sum shall be the fixed cost per kilowatt at the station.

(b) The running costs at each station so ascertained shall be divided by the number of units supplied from the station in the year and the resultant sum shall be the running cost per unit at the station.

5. The fixed cost per kilowatt at each station shall be multiplied by the maximum number of kilowatts supplied in the year by the Board to the Central Electricity Board under subsection (1) of section sixteen of this Act, and the sum so obtained shall be added to the sum obtained by multiplying the running cost per unit at the station by the number of units so supplied in the year.

6. The lowest resultant sum obtained in accordance with Rule 5 of these Rules shall be the price to be paid by the Central Electricity Board to the Board for the supply in the year.

FIFTH SCHEDULE.

Section 21.

ADAPTATIONS AND MODIFICATIONS OF PROVISIONS OF THE ELECTRICITY (SUPPLY) ACTS, 1882 TO 1936 AND OF THE SCHEDULE TO THE ELECTRIC LIGHTING CLAUSES ACT, 1899.

PART I.

Adaptations and modifications of the provisions of the Electricity (Supply) Acts, 1882 to 1936.

1. The expression "the Board" means the North of Scotland Hydro-Electric Board and for any reference in the said provisions to the Central Electricity Board there shall be substituted a reference to the Board.

2. The provisions of the said Acts specified in the first column of the following Table shall be adapted and modified in the manner specified in the second column of that Table :—

*Adaptations and Modifications.**The Electric Lighting Act, 1882.*

Section three	...	The section shall not apply to the Board.
Section four	...	The section shall not apply to the Board.
Section nine	...	The section shall not apply to the Board.
Section twelve	...	Paragraph (1) of the section shall not apply to the Board.
Section fourteen	...	The section shall not apply to the Board.
Section nineteen	...	There shall be inserted after the words "such supply" the words "or of any regulations under the Hydro-Electric Development (Scotland) Act, 1943."

The Electric Lighting Act, 1888.

Section two ...	...	The provisions substituted for section twenty-seven of the Electric Lighting Act, 1882, shall not apply to the Board.
Section three	...	The section shall not apply to the Board.

The Electric Lighting Act, 1909.

Section one ...	...	The section shall not apply to the Board.
Section two ...	...	The section shall not apply to the Board.
Section three	...	The section shall not apply to the Board.
Section four	...	The section shall not apply to the Board.
Section six ...	...	In subsection (2) after the words "Electric Lighting Acts" there shall be inserted the words "or by the Hydro-Electric Development (Scotland) Act, 1943," and after the words "Provisional Order" there shall be inserted the words "or by any scheme approved and confirmed under the Hydro-Electric Development (Scotland) Act, 1943." Subsection (3) shall not apply to the Board.
Section seven	...	The section shall not apply to the Board.

The Electricity (Supply) Act, 1919.

- Section eleven ... The section shall not apply to the Board.
 Section fifteen ... Subsection (1) shall not apply to the Board.
 Section sixteen ... There shall be inserted after the words "this Act," the words "or section eighteen of the Hydro-Electric Development (Scotland) Act, 1943" and for the words "on an annual salary" in the proviso there shall be substituted the words "in the performance of administrative, professional, clerical, supervisory or technical duties not being a person employed by way of manual labour on a weekly or less than a weekly wage."
 Section twenty-two... The section shall not apply to the Board.
 Section twenty-three There shall be inserted after the word "authority," where it first occurs, the words "the Board."
 Section twenty-seven The section shall not apply to the Board.
 Section thirty-three There shall be inserted after the word "Act," the words "or of the Hydro-Electric Development (Scotland) Act, 1943."

The Electricity (Supply) Act, 1922.

- Section four ... There shall be inserted after the word "authority," wherever it occurs, the words "or the Board ;" and after the word "Act," where it occurs for the second and third times, the words "or the Hydro-Electric Development (Scotland) Act, 1943."
 Section six ... There shall be inserted after the word "authority" wherever it occurs the words "or the Board."
 Section eight ... There shall be inserted after the word "Act" the words "or under section eighteen of the Hydro-Electric Development (Scotland) Act, 1943."
 Section eleven ... The section shall not apply to the Board.

The Electricity (Supply) Act, 1926.

- Section one ... The section shall be omitted.
 Section two ... The section shall be omitted.
 Section four ... In paragraph (b) of subsection (1) the words "to be constructed or acquired by the Board" shall be omitted.
 Section five ... In subsection (2) the words "any authorised undertakers or other company or person approved by the Board or failing such authorised undertakers, company or person," the words from "but where the generating station" to "acquire the station," and the words "the authorised undertakers, company or person, or" shall be omitted.
 In subsection (3) for the words from "may carry out" to the end of the subsection there shall be substituted the words "shall be

5TH SCH.
—cont.

deemed to have acquired it under the powers and for the purposes of the Hydro-Electric Development (Scotland) Act, 1943, and may carry out such extensions or alterations thereof as are required by the scheme or as may be approved by the Electricity Commissioners."

- Section six ... The section shall be omitted.
- Section seven ... In subsection (4) for the words " the tariff fixed under this Act for the supply of electricity by the Board " there shall be substituted the words " such tariff for the supply of electricity by the Board to authorised undertakers as may be fixed by the Board under subsection (1) of section ten of the Hydro-Electric Development (Scotland) Act, 1943."
- Section nine ... In subsection (2) for the words " this Act," there shall be substituted the words " section twelve of the Hydro-Electric Development (Scotland) Act, 1943."
- Section eleven ... In subsection (1) for the words from " as may be fixed," to the end of the subsection, there shall be substituted the words " for the supply of electricity to authorised undertakers as may be fixed by the Board under subsection (1) of section ten of the Hydro-Electric Development (Scotland) Act, 1943." Subsection (3) shall be omitted.
- Section thirteen ... After the words " this Act," where those words occur for the third time, there shall be inserted the words " and the Hydro-Electric Development (Scotland) Act, 1943 "; and there shall be added at the end of the section the words, " For the purpose of this section it shall be competent to take into account any generating station operated by water power which the undertakers could have been authorised to establish if the aforesaid Acts had not been passed."
- Section seventeen ... In subsection (1) the words " acquired under this Act by any authorised undertakers, company or person or by the Board," shall be omitted, and for the words from " the body so acquiring," to the end of the subsection there shall be substituted the words " the Board."
- In subsection (2) for the words " an acquiring authority," there shall be substituted the words " the Board."

- Section eighteen ... In subsection (1) after the word "approval," in both places where that word occurs there shall be inserted the words "or confirmation," after the words "Electricity Commissioners," there shall be inserted the words "or the Secretary of State," and after the words "Electricity (Supply) Acts, 1882 to 1922," there shall be inserted the words "or the Hydro-Electric Development (Scotland) Act, 1943."
- In subsection (2) after the word "undertakers" there shall be inserted the words "or by the Board"; after the words "Electricity Commissioners" there shall be inserted the words "or the Secretary of State"; after the word "approval" in each place where that word occurs there shall be inserted the words "or confirmation"; after the words "Electricity (Supply) Acts, 1882 to 1922" there shall be inserted the words "or the Hydro-Electric Development (Scotland) Act, 1943"; and after the words "or Commissioners" there shall be inserted the words "or Secretary of State."
- Section twenty ... The section shall be omitted.
- Section twenty-one Subsection (1) shall be omitted.
In subsection (2) for the words "this section," there shall be substituted the words "the Hydro-Electric Development (Scotland) Act, 1943," and the words from "or enable the Board," to the end of the subsection shall be omitted.
- Section twenty-two The section shall be omitted.
- Section twenty-three In subsection (1) there shall be inserted at the beginning the words "subject to the provisions of the Hydro-Electric Development (Scotland) Act, 1943," and the words from "and the Board" to the end of the subsection shall be omitted.
- Section twenty-five The section shall be omitted.
- Section twenty-six ... The section shall be omitted.
- Section twenty-seven The section shall be omitted.
- Section twenty-eight The section shall be omitted.
- Section twenty-nine The section shall be omitted.
- Section thirty ... The section shall be omitted.
- Section thirty-five ... In subsection (1) for the words "any work by this Act authorised" and for the words "any portion of the undertaking by this Act authorised" there shall be substituted the words "any transmission lines of the Board."

5TH SCH.
—cont.

- Section forty-two ... In subsection (2) there shall be inserted after the words "Act or Order" the words "or by regulations under section ten of the Hydro-Electric Development (Scotland) Act, 1943"; and there shall be inserted after the word "approval" the words "or regulations."
- Section forty-four ... Subsection (1) shall not apply to the Board.
In subsection (2) after the words "Electricity (Supply) Act, 1919" there shall be inserted the words "or the Hydro-Electric Development (Scotland) Act, 1943."
- Section forty-eight ... Subsection (3) shall not apply to the Board.
After subsection (5) the following subsection shall be added:—
" (6) The Board shall have the like powers as are conferred by this section on a joint electricity authority."
- Fourth Schedule ... For the words "on an annual salary" in the proviso there shall be substituted the words "in the performance of administrative, professional, clerical, supervisory or technical duties not being a person employed by way of manual labour on a weekly or less than a weekly wage."

The Electricity (Supply) Act, 1935.

- Section two ... In subsection (1) the words "and shall be deemed always to have had power," shall be omitted; for the words "that section," there shall be substituted the words "section ten of the Hydro-Electric Development (Scotland) Act, 1943," and the words "after the passing of this Act," in the first proviso, and the second proviso shall be omitted.
Subsection (2) shall be omitted.

PART II.

*Adaptations and modifications of provisions of the Schedule
to the Electric Lighting (Clauses) Act, 1899.*

1. Sections two to eight, paragraph (b) of section ten, section twelve, paragraph (h) of section sixteen, paragraph (j) of section seventeen, sections thirty-one to thirty-four, thirty-seven, forty-one to forty three, forty-eight and sixty-three to sixty-eight, subsection (3) of section sixty-nine, sections seventy, seventy-four and seventy-five, subsections (2) and (3) of section seventy-six and section seventy-eight shall not apply to the Board.

2. In the application to the Board of section one, paragraphs (a) and (c) of section ten, section thirteen, subsection (3) of section eighteen, subsections (2) and (3) of section twenty-one, sections twenty-five,

thirty-eight, thirty-nine, forty-seven, forty-nine to fifty-one, fifty-five, fifty-nine and sixty, subsections (1) and (2) of section sixty-nine and section seventy-three references to the Electricity Commissioners shall be substituted for references to the Board of Trade.

3. The sections of the said Schedule specified in the first column of the following table shall, in their application to the Board, be adapted and modified in the manner specified in the second column of that table :—

Adaptations and Modifications.

Section one ...	... For the words "Electric Lighting Acts" there shall be substituted the words "Electricity (Supply) Acts 1882 to 1936." For the definition of "the Special Order" there shall be substituted the following definition :—The expression "the Special Order" means "the Hydro - Electric Development (Scotland) Act, 1943, or any scheme approved and confirmed thereunder except that in section twenty-one of this Schedule, the said expression means a distribution scheme approved and confirmed under the said Act." There shall be inserted after the definition of "the Special Order" the words "The expression 'the Undertakers' means the North of Scotland Hydro-Electric Board." In the definition of the expression "main" the words "which may be laid down by the undertakers in any street or public place and" shall be omitted. In the definition of the expression "consumers terminals" the words "and belonging to him" shall be omitted. The definition of the expression "deposited map" shall be omitted.
Section nine...	... For the section there shall be substituted the following section :— "9. No matter or thing done and no contract entered into by the Undertakers, and no matter or thing done by any member of the Undertakers or by any officer of the Undertakers or other person whomsoever acting under the direction of the Undertakers shall, if the matter or thing were done or the contract were entered into bona fide for the purpose of executing the Special Order, subject them or any of them personally to any action, liability claim or demand whatsoever ; and any expense incurred by the Undertakers, member, officer or other person

5TH SCH.
—cont.

acting as last aforesaid shall be borne and repaid out of the fund applicable by the Undertakers to the general purposes of the Special Order."

- Section twenty ... In subsections (1) and (2) there shall be inserted after the words "signalling communication" the words "or electrical control of railways."
- Section twenty-three The words from "continues" in subsection (1) to the end of the section shall be omitted.
- Section twenty-four In subsection (1) there shall be substituted for the words "distributing mains," the words "a distributing main;" after the words "throughout any street or part of a street," there shall be inserted the words "or along any other route;" after the words "along that street or part of a street," there shall be inserted the words "or within reasonable proximity of such route;" and the words "are not themselves the Undertakers and," shall be omitted.
- Section thirty-five ... For the section there shall be substituted the following section:—
"35. The Electricity Commissioners on the application of any consumer or of the Undertakers may appoint and keep appointed one or more competent and impartial person or persons to be electric inspectors under the Special Order and the fees or expenses reasonably incurred by any such inspectors in the performance of their duties shall be paid by the undertakers or by consumers as the Electricity Commissioners may direct."
- Section thirty-six ... In subsection (1) the words "periodically and in special cases" shall be omitted.
For subsection (2) there shall be substituted the following subsection:—
"(2) The Electricity Commissioners may prescribe the manner in which and the times at which any such duties are to be performed by an electric inspector, and also the fees to be taken by him, and those fees shall be accounted for and applied as may be directed by the Electricity Commissioners."
- Section sixty ... In subsection (2) there shall be inserted after the word "supply" the words "or at their offices most convenient to the area of supply."

Section sixty-two ... In subsection (1) for paragraphs (a) and (e) the following paragraphs shall be respectively substituted :—

5TH SCH.
—cont.

(a) in the case of the Secretary of State, the Board of Trade, the Minister of Fuel and Power, and the Electricity Commissioners, their respective offices.

(e) in the case of the Undertakers, the office of the Undertakers.

Section eighty-two ... For the words " Act confirming the Special Order " there shall be substituted the words " Hydro-Electric Development (Scotland) Act, 1943."

SIXTH SCHEDULE.

PROVISIONS AS TO INQUIRIES.

Section 24.

1. The Secretary of State shall appoint a person to hold the inquiry and to report thereon to him.

2. The person appointed to hold the inquiry shall notify the Board and any person who has lodged objections to the scheme which is the subject of the inquiry, and shall publish in such newspaper or newspapers as the Secretary of State may direct a notice, of the time when and the place where the inquiry is to be held.

3. Except with the sanction of the person appointed to hold the inquiry, no person other than the Board or a person who has lodged objections to the scheme which is the subject of the inquiry shall be entitled to appear or to be represented at the inquiry.

4. The person appointed to hold the inquiry may, on the motion of any party thereto, or of his own motion, require any person by notice in writing—

(a) to attend at the time and place set forth in the notice to give evidence or to produce any books or documents in his custody or under his control which relate to any matter in question at the inquiry ; or

(b) to furnish within such reasonable period as is specified in the notice such information relating to any matter in question at the inquiry as the person appointed to hold the inquiry may think fit and as the person so required is able to furnish.

Provided that—

(i) no person shall be required in obedience to such a notice to attend at any place which is more than ten miles from the place where he resides unless the necessary expenses are paid or tendered to him ; and

(ii) such a notice shall not require the production of plans or the furnishing of particulars prepared before the passing of this Act for the purposes of any scheme for the development of water power resources in the North of Scotland District.

5. The person appointed to hold the inquiry may administer oaths and examine witnesses on oath and may accept, in lieu of evidence on oath by any person, a statement in writing by that person.

6TH SCH.
—cont.

6. The inquiry shall be held in public.

7. Any person who refuses or wilfully neglects to attend in obedience to a notice issued under paragraph 4 of this Schedule, or who wilfully alters, suppresses, conceals, destroys, or refuses to produce, any book or document which he may be required to produce by any such notice, or who refuses or wilfully neglects to comply with any requirement under paragraph 4 of this Schedule of the person appointed to hold the inquiry shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a period not exceeding three months.

8. The Secretary of State shall communicate to each party to the inquiry the recommendations made by the person appointed to hold it.

9. The expenses incurred by the Secretary of State in relation to the inquiry (including such reasonable sum as the Secretary of State may determine for the services of the person appointed to hold the inquiry) shall be paid by the parties to the inquiry as the Secretary of State may order.

10. The Secretary of State may make orders as to the expenses incurred by the parties to the inquiry and as to the parties by whom such expenses shall be paid.

11. Any order by the Secretary of State under paragraph nine or paragraph ten of this Schedule requiring any party to pay expenses may be enforced in like manner as a recorded decree arbitral.

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